

TENTATIVE RULING FOR CIVSB2322839
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Powell v. MacDonald & Cody, LLC, et al

Motion: Compel Compliance and Request for Sanctions

Movant: MacDonald & Cody, LLC (M&C/Defendant)

Respondent: Sonya Powell, individually and as Successor in Interest to David Jason Powell
(Powell/Plaintiff)

RULING

Before the Court is M&C's motion to compel Plaintiff's compliance with supplemental verified responses served on January 26, 2026, in which Plaintiff Sonya agreed to produce documents in response to M&C's Request for Production (Set 3), Request No. 56. The only issue remaining is sanctions.

The instant motion was filed March 6, 20206, however it was not until March 27, 2026, when defense counsel again inquired about production that Plaintiff finally produced a copy of her passport. Plaintiff's counsel's arguments about the former attorney and his jury duty, as well as argument that counsel believed it had been produced, do not overcome the fact that it took a motion and a further request by defense counsel for Plaintiff to produce a copy of her passport as agreed.

Defendant's Motion to Compel Compliance to Discovery is deemed MOOT. Defendant's request for monetary sanctions is GRANTED. Sonya Powell, individually and as Successor in Interest to David Jason Powell and her attorney of record Rosen Saba, LLP are jointly and severally sanctioned the \$1200 to be paid forthwith.

TENTATIVE RULING FOR CIVSB2218000
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Westlake Services, LLC v. Davies

Motion: (1) Quash

(2) Set Aside

Movant: Toby M. Davies 9Davies/Defendant)

Respondent: Westlake Services, LLC (Westlake/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On August 15, 2022, Plaintiff initiated the instant action against Defendant. On December 8, 2022, Plaintiff filed a Proof Of Service of Summons. The proof of service evidences that the Summons and Complaint in this matter were served by a registered process server by substitute service on November 8, 2022. On October 13, 2023, Plaintiff filed a Request for Entry of Default, which was entered by the clerk of the court on the same day. On December 27, 2023, the court entered a default judgment in favor of the Plaintiff. On March 25, 2026, Defendant filed the instant Motion to Quash Service of Summons, Set Aside Default and Default Judgment (Motion). Plaintiff opposes.

ANALYSIS

MOTION TO QUASH

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 612 (*Borsuk*).) Service of summons can occur essentially in four manners: (1) personal service (Code Civ. Proc., § 415.10); (2) substituted service (Code Civ. Proc., § 415.20); (3) by mail with copy of notice of acknowledgment (Code Civ. Proc., § 415.30); and (4) by publication if person cannot be served otherwise (Code Civ. Proc., § 415.50).

When service is challenged by a motion to quash, it is the plaintiff's burden to prove, by a preponderance of the evidence, the validity of the service and the court's jurisdiction over the defendant by proving all facts requisite to an effective service. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160; *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.) The necessary facts are established by affidavits and other authenticated documents. (*In re Automobile*

Antitrust Cases I and II (2005) 135 Cal.App.4th 100, 110.) Declarations cannot be mere vague assertions of ultimate facts but must offer specific evidentiary facts permitting a court to form an independent conclusion on the issue of jurisdiction. (*Strasner v. Touchstone Wireless Repair & Logistics, LP* (2016) 5 Cal.App.5th 215, 222.)

Plaintiff has met its burden to show the validity of the subject service. The Proof of Service of Summons includes a declaration of reasonable diligence signed by Jeffrey Dunn (Dunn), a registered process server. Dunn declares he made two attempts to serve Defendant at 26121 Wallack Place in Loma Linda, California and three attempts to serve Hariya at 10925 Santa Barabara Place in Rancho Cucamonga, California. On November 8, 2022, Dunn left the pleadings with “John Doe (refused true name), co-resident.” The pleadings were subsequently mailed to Defendant at the subject address on November 8, 2022. The proof of service complies with section 415.20, subdivision (b), and as such, Plaintiffs have met their burden, by a preponderance of the evidence, to show the validity of the service and the court’s jurisdiction over Defendant.

MOTION TO SET ASIDE DEFAULT

Defendant motions for the court to set aside the subject default pursuant to Code of Civil Procedure Section 473, subdivision (d), which states in pertinent part: “The court may, . . . after notice to the other party, set aside any void judgment or order. (CCP§473(d)).

The proof of service filed December 8, 2022, includes a declaration of due diligence signed registered process server, Jeffrey Dunn (Dunn). Dunn declares his due diligence attempts to serve Defendant personally at 10925 Santa Barbara Place in Rancho Cucamonga, California on November 3rd and November 6th of 2022. Ultimately, on November 8, 2022, Dunn served Defendant through substituted service by leaving the pleadings with John Doe (Refused True Name) and mailing a copy of the pleadings to Defendant’s residence. Based on the foregoing, the proof of service complies with section 415.20, subdivision (b), and the subject judgment is not void on its face.

Defendant’s extrinsic evidence consists of declarations from the Defendant and three of the other residences of 10925 Santa Barbara Place, including Defendant’s son, wife and godmother. A review of all the evidence presented shows that Defendant’s extrinsic evidence fails to show that he was never properly served.

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RULING

1. Defendant's Evidentiary Objections to Declaration of Eric Marquez and Exhibit 3 are OVERRULED.
2. Defendant's Motion to Quash Service of Summons is DENIED.
3. Defendant's Motion to Set Aside Judgment is DENIED.
4. Movant to give Notice.